

JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION FOR UNUSUAL AND COMPELLING URGENCY

1. Agency: DLA AVIATION Contracting Activity: FAZ
 Document Identification Number: PR 700931228 Solicitation Number: SPE4A7-25-R-0177
☒ FAR Part 15 ☐ FAR Part 12 ☐ FAR Part 13.5

2. The action being approved is the acquisition of supplies/services on other than a full and open competition basis due to unusual and compelling urgency.

☒ New Action ☐ Amendment: _____

3. The supplies/services required to meet the using activity's needs are described as follows:

BRIEF DESCRIPTION	NSN/PN	QUANTITY	ESTIMATED VALUE
TANK, FUEL	1560-00-739-8342	56	

*If too numerous, attach list of NSNs and AMSC codes.

4. The statutory authority permitting other than full and open competition is 10 U.S.C. 3204(a)(2) – Unusual and Compelling Urgency.

Delivery in Days	329
Current IPG1 Backorders	33
Projected IPG1 Backorders	20

5. The acquisition is restricted to the only source(s) of supply known to have the capability of furnishing the required supplies/services within the timeframe allowed to meet the exigency. Source(s) are:

CAGE	COMPANY NAME
56221	MEGGITT (ROCKMART)
05476	AM FUEL CELL & COATED FABRICS
79U29	NORTHROP GRUMMAN

6. Efforts to ensure that offers are solicited from as many sources as practicable are:

☒ The acquisition will be synopsized on or about 21 NOV 24 and any firm requesting a solicitation copy will be provided one.

☐ A synopsis exception cited in FAR 5.202 applies: (Explain) _____

☐ Manufacturers of similar products identified in the market survey will be solicited.

☐ Dealers of the manufacturers will be solicited.

☒ Other: (Explain) Sources Sought notice was posted on 18 NOV 24 on SAM.GOV. No interested sources responded.

7. I hereby determine that the anticipated cost to the Government will be fair and reasonable. (Explain) _____

Competition is not anticipated for this requirement. Informal cost data or Should Cost may be required.

8. A market survey as defined by FAR 10:

☒ was conducted, and firms indicating an interest in the acquisition will be solicited. Market research efforts, include:
Sources Sought notice was posted on SAM.GOV on 18 NOV 24 . No responses were received.

☐ was not conducted due to the unusual and compelling urgency of the requirement.

CONTROLLED BY: (AGENCY)

CONTROLLED BY:

CUI CATEGORY:

DISTRIBUTION/DISSEMINATION

CONTROL:

POC: (insert email or phone number)

☐ was not conducted due to: _____

9. Additional facts supporting unusual and compelling urgency resulting in other than full and open competition are:

- ☐ The requisitioner has assigned a priority designator within Issue Priority Group (IPG) 1.
☐ The requisitioner has also cited an expedited handling signal of 999m N__, or E__, or an Office of the Secretary of Defense/Joint Chiefs of Staff project code beginning with a "9".
☒ As stated in the attached certification by the requiring activity, the Military Services will be seriously injured if contract award is delayed. The extent and nature of harm are detailed in the attached certification.
☐ Other: _____

10. A listing of sources, if any, indicating an interest in writing in the acquisition are: (if none, state none)

CAGE	COMPANY NAME
56221	MEGGITT (ROCKMART)
05476	AM FUEL CELL & COATED FABRICS
79U29	NORTHROP GRUMMAN
_____	_____

11. The actions, being taken to overcome barriers to competition before any subsequent acquisition are made: (Explain)

This solicitation is to contain procurement notes M06/L04 in order to allow any interested parties to submit data for evaluation in order to reduce barriers to competition for this item.

APPROVAL

APPROVAL LEVELS OF THE JUSTIFICATION – FAR 6.304

- ☐ not exceeding \$750,000..... Contracting Officer
☒ over \$750,000 not exceeding \$15,000,000..... Competition Advocate

TECHNICAL/REQUIREMENTS PERSONNEL CERTIFICATION – FAR 6.303-2(c)

Supporting data that is the responsibility of technical or requirements personnel and which form the basis for this justification have been certified as complete and accurate by the cognizant technical/requirements Personnel. Signature of technical/requirements personnel is not required.

CONTRACTING OFFICER – FAR 6.303-2(b)(12)

I hereby certify that the information contained in this justification is accurate and complete to the best of my knowledge and belief. If not exceeding \$750,000, this signature serves as the approval.

Adrienne Davis

Name and Title

Signature  NNE.L. Digitally signed by DAVIS.ADRIENNE.L Date: 2025.03.11 14:...

Phone 

03/11/2025

Date

COMPETITION ADVOCATE – FAR 6.304(a)(2)

The Competition Advocate for the procuring activity designated pursuant to FAR 6.501 has reviewed and approved this Justification for a proposed contract over \$750,000 but not exceeding \$15 million.

Yollanda Calvin Maupin

Name and Title

Signature  DA. Digitally signed by MAUPIN.YOLLANDA.C Date: 2025.03.12 09:5...

Phone 

3.12.25

Date